

EUROPEAN COURT OF HUMAN RIGHTS
COUR EUROPÉENNE DES DROITS DE L'HOMME

THIRD SECTION

CASE OF PCHELIN AND OTHERS v. RUSSIA

(Applications nos. 6274/13 and 23 others –
see appended list)

JUDGMENT

STRASBOURG

6 April 2023

This judgment is final but it may be subject to editorial revision.



In the case of Pchelin and Others v. Russia,

The European Court of Human Rights (Third Section), sitting as a Committee composed of:

Peeter Roosma*, President*,
Ioannis Ktistakis,
Andreas Zünd*, judges*,

and Viktoriya Maradudina, *Acting Deputy Section Registrar,*

Having deliberated in private on 16 March 2023,

Delivers the following judgment, which was adopted on that date:

PROCEDURE

1. The case originated in applications against Russia lodged with the Court under Article 34 of the Convention for the Protection of Human Rights and Fundamental Freedoms ("the Convention") on the various dates indicated in the appended table.

2. The Russian Government ("the Government") were given notice of the applications.

THE FACTS

3. The list of applicants and the relevant details of the applications are set out in the appended table.

4. The applicants complained of the disproportionate measures taken against them as organisers and/or participants of public assemblies. Some applicants also raised other complaints under the provisions of the Convention.

THE LAW

I. JOINDER OF THE APPLICATIONS

5. Having regard to the similar subject matter of the applications, the Court finds it appropriate to examine them jointly in a single judgment.

II. ALLEGED VIOLATION OF ARTICLE 11 OF THE CONVENTION

6. The applicants complained principally of disproportionate measures taken against them as organisers and/or participants of public assemblies, namely the dispersal of these assemblies, as well as the applicants' arrest followed by their conviction for administrative offence. They relied, expressly or in substance, on Article 11 of the Convention.

7. The Court refers to the principles established in its case-law regarding freedom of assembly (see *Kudrevičius and Others v. Lithuania* [GC],

no. 37553/05, ECHR 2015, with further references) and proportionality of interference with it (see *Oya Ataman v. Turkey*, no. 74552/01, ECHR 2006-XIV, and *Hyde Park and Others v. Moldova*, no. 33482/06, 31 March 2009).

8. In the leading cases of *Frumkin v. Russia,* no. 74568/12, ECHR 2016 (extracts), *Navalnyy and Yashin v. Russia,* no. 76204/11, 4 December 2014 and *Kasparov and Others v. Russia,* no. 21613/07, 3 October 2013, the Court already found a violation in respect of issues similar to those in the present case.

9. Having examined all the material submitted to it, the Court has not found any fact or argument capable of persuading it to reach a different conclusion as to the admissibility and merits of these complaints. Having regard to its case-law on the subject, the Court considers that in the instant case the interferences with the applicants' freedom of assembly were not "necessary in a democratic society".

10. These complaints are therefore admissible and disclose a breach of Article 11 of the Convention.

III. OTHER ALLEGED VIOLATIONS UNDER WELL-ESTABLISHED CASE-LAW

11. Some applicants submitted other complaints which also raised issues under the Convention, given the relevant well-established case-law of the Court (see appended table). These complaints are not manifestly ill-founded within the meaning of Article 35 § 3 (a) of the Convention, nor are they inadmissible on any other ground. Accordingly, they must be declared admissible. Having examined all the material before it, the Court concludes that they also disclose violations of the Convention in the light of its well-established case-law (see *Tsvetkova and Others v. Russia*, nos. 54381/08 and 5 others, §§ 84-138, 10 April 2018, as regards unlawful administrative arrest, and *Karelin v. Russia*, no. 926/08, 20 September 2016, concerning examination of criminal cases in the absence of a prosecuting party in the judicial proceedings governed by the Federal Code of Administrative Offences(CAO)).

IV. REMAINING COMPLAINTS

12. In view of its findings above, the Court considers that there is no need to deal separately with the remaining complaints under Article 6 of the Convention raised by some of the applicants in relation to other aspects of the fairness of the administrative-offence proceedings.

V. APPLICATION OF ARTICLE 41 OF THE CONVENTION

13. Article 41 of the Convention provides:

> "If the Court finds that there has been a violation of the Convention or the Protocols thereto, and if the internal law of the High Contracting Party concerned allows only partial reparation to be made, the Court shall, if necessary, afford just satisfaction to the injured party."

14. Regard being had to the documents in its possession and to its case-law (see, in particular, *Navalnyy and Others v. Russia* [Committee], nos. 25809/17 and 14 others, § 22, 4 October 2022), the Court finds it reasonable to award the sums indicated in the appended table and dismisses the remainder of the applicants' claims for just satisfaction.

FOR THESE REASONS, THE COURT, UNANIMOUSLY,

1. *Decides* to join the applications;

2. *Declares* the complaints concerning the right to peaceful assembly and the other complaints under the well-established case-law of the Court, as set out in the appended table, admissible, and *decides* that it is not necessary to examine separately the remaining complaints under Article 6 of the Convention concerning other aspects of the fairness of the proceedings;

3. *Holds* that these applications disclose a breach of Article 11 of the Convention concerning the right to peaceful assembly,

4. *Holds* that there has been a violation of the Convention as regards the other complaints raised under the well-established case-law of the Court (see appended table);

5. *Holds*
   (a) that the respondent State is to pay the applicants, within three months, the amounts indicated in the appended table, to be converted into the currency of the respondent State at the rate applicable at the date of settlement;
   (b) that from the expiry of the above-mentioned three months until settlement simple interest shall be payable on the above amounts at a rate equal to the marginal lending rate of the European Central Bank during the default period plus three percentage points;

6. *Dismisses* the reminder of the applicants' claims for just satisfaction.

Done in English, and notified in writing on 6 April 2023, pursuant to Rule 77 §§ 2 and 3 of the Rules of Court.

Viktoriya Maradudina	Peeter Roosma
Acting Deputy Registrar	President

APPENDIX

List of applications raising complaints under Article 11 of the Convention
(disproportionate measures against organisers and participants of public assemblies)

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
1.	6274/13 06/12/2012	**Dmitriy Fedorovich PCHELIN** 1984		Protest against a violation of freedom of peaceful assembly Moscow, Red Square 01/04/2012	Article 20.2 § 2 of CAO	fine of RUB 500	Tverskoy District Court of Moscow 13/06/2012		3,500
2.	69940/17 07/09/2017	**Yevgeniy Viktorovich TRISHIN** 1988	Terekhov Konstantin Ilyich Moscow	Anti-corruption manifestation St Petersburg 12/06/2017	Article 19.3 § 1 of CAO, Article 20.2 § 5 of CAO	fine of RUB 1,000 and RUB 10,000, respectively	St Petersburg City Court 18/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrest and detention on 12/06/2017 in excess of 3 hours for the sole purpose of drawing up a record of administrative offence; issue raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 18/07/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
3.	79158/17 02/11/2017	**Ivan Borisovich KURIN** 1986	Gaynutdinov Damir Ravilevich Sofia, Bulgaria	Anti-corruption rally Labour Square, Yekaterinburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 04/05/2017		3,500
4.	79161/17 02/11/2017	**Leonid Valeryevich MELCHAKOV** 1983	Gaynutdinov Damir Ravilevich Sofia, Bulgaria	Anti-corruption rally Labour Square, Yekaterinburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 03/05/2017		3,500
5.	79367/17 02/11/2017	**Leonid Leonidovich VINOKUROV** 1986	Gaynutdinov Damir Ravilevich Sofia, Bulgaria	Anti-corruption rally Labour Square, Yekaterinburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 03/05/2017		3,500
6.	79945/17 15/11/2017	**Dmitriy Pavlovich POROKH** 1995	Gaynutdinov Damir Ravilevich Sofia, Bulgaria	Anti-corruption rally Labour square, Yekaterinburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Sverdlovsk Regional Court 16/05/2017	Art. 5 (1) – unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - The applicant was detained for almost 3 hours on 26/03/2017 in a police bus at the place of the events without a valid reason; raised on appeal	4,000
7.	80631/17 17/11/2017	**Anatoliy Viktorovich GONENKO** 1984	Memorial Human Rights Centre Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 26/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 26/05/2017	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
8.	80632/17 17/11/2017	**Oksana Aleksandrovna PROSNIKOVA** 1985	Memorial Human Rights Centre Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 17/05/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - The applicant was escorted to a police station on 26/03/2017, where the administrative offence report was drawn up. The applicant's detention exceeded 3-hour statutory time limit; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 17/05/2017	4,000
9.	80633/17 17/11/2017	**Olga Nikolayevna BUSHKOVA** 1986	Memorial Human Rights Centre Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 2 of CAO	fine of RUB 15,000	Moscow City Court 16/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – the applicant escorted to a police station to draw an administrative offence report; arrest exceeding 3-hour statutory time limit; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 16/06/2017	4,000
10.	81111/17 20/11/2017	**Yuliya Alekseyevna SUBOCHEVA** 1986	Zboroshenko Nikolay Sergeyevich Mytishchi	Public assembly in favour of social benefits for Moscow residents	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/05/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 24/05/2017	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				Moscow 01/07/2016					
11.	83338/17 05/12/2017	**Yuriy Aleksandrovich LEVANOV** 1981	Terekhov Konstantin Ilyich Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 06/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – arrested on 26/03/2017 for the sole purpose of drawing up a record of administrative offence; arrest exceeding 3-hour statutory time-limit; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 06/06/2017	4,000
12.	83929/17 08/12/2017	**Andrey Aleksandrovich BELYAVSKIY** 1982	Memorial Human Rights Centre Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 14/06/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 14/06/2017	3,500
13.	83934/17 08/12/2017	**Valeriy Sergeyevich NAZARKIN** 1983	Memorial Human Rights Centre Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 08/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - the applicant was arrested on 26/03/2017 and escorted to a police station for compiling an administrative offence record; arrest exceeding 3-hour statutory time- limit; raised on appeal,	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
								Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 08/06/2017	
14.	83937/17 08/12/2017	**Sergey Gennadyevich RIDINGER** 1986	Memorial Human Rights Centre Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 24/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – the applicant was arrested on 26/03/2017 for the sole purpose of drawing up an administrative offence record; the applicant's detention exceeded the statutory time- limit of 3 hours; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 24/07/2017	4,000
15.	83947/17 08/12/2017	**Aleksey Mikhaylovich SINITSYN** 1996	Memorial Human Rights Centre Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 5,000	Moscow City Court 18/07/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - the applicant was escorted to a police station for drawing up an administrative offence record; the arrest exceeded 3-hour statutory time- limit; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 18/07/2017	4,000

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
16.	84510/17 15/12/2017	**Vladimir Ivanovich SOFILKANICH** 1968	Memorial Human Rights Centre Moscow	Anti-corruption rally Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	Moscow City Court 16/06/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis – the applicant was arrested on 26/03/2017 for the sole purpose of drawing up an administrative offence record, without any assessment/explanation as to why it was impossible to draw the record on the spot; unlawful administrative arrest exceeding 3 hours: apprehended by the police at 2.50 p.m. on 26/03/2017, released from the police station at 8 p.m.; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 16/06/2017	4,000
17.	84520/17 18/12/2017	**Yekaterina Valeryevna TAGUNOVA** 1991	Mehtiyeva Kamalia Paris	Rally for rotation of high-ranking Russian officials Aleksandrovskiy Park, St Petersburg 29/04/2017	Article 19.3 § 1 of CAO and Article 20.2 § 5 of CAO	fine of RUB 500 and fine of RUB 100	St Petersburg City Court 20/06/2017		3,500
18.	2160/18 11/12/2017	**Kseniya Mikhaylovna KORCHILOVA** 1996	Markin Konstantin Aleksandrovich Velikiy Novgorod	Anti-corruption demonstration St Petersburg, 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 06/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 06/07/2017	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
19.	2845/18 26/12/2017	**Stanislav Valeryevich ANDREYCHUK** 1985	Glukhov Aleksey Vladimirovich Novocheboksarsk	Anti-terrorism manifestation Barnaul 08/04/2017	Article 20.2 § 6.1 of CAO	fine of RUB 10,000	Altay Regional Court 12/09/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Altay Regional Court on 12/09/2017	3,500
20.	3844/18 13/12/2017	**Mariya Sergeyevna SECHINA** 1991	Ratnikova Svetlana Sergeyevna St Petersburg	Anti-corruption demonstration St Petersburg 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 10,000	St Petersburg City Court 06/07/2017	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: St Petersburg City Court on 06/07/2017	3,500
21.	4818/18 08/12/2017	**Ruslan Igorevich OSTROVSKIY** 1989	Preobrazhenskaya Oksana Vladimirovna Strasbourg	Anti-corruption rally Tverskaya square, Moscow 26/03/2017	Article 20.2 § 5 of CAO	fine of RUB 15,000	Moscow City Court 08/12/2017	Art. 5 (1) - unlawful deprivation of liberty, including unrecorded detention and detention without a judicial order and any other legal basis - arrested on 26/03/2017, at 3.30 p.m., taken to a police station to draw up a record of administrative offence; released on the same day after 10 p.m., detention beyond the 3-hour statutory time-limit; raised on appeal, Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Moscow City Court on 08/12/2017	4,000
22.	59656/18 06/12/2018	**Igor Aleksandrovich YAKOVLEV** 1986	Glukhov Aleksey Vladimirovich Novocheboksarsk	Opposition manifestation Republic Square, Cheboksary	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Chuvashia Republic 07/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Final decision: Supreme Court of the Chuvashia Republic on 07/06/2018	3,500

No.	Application no. Date of introduction	Applicant's name Year of birth	Representative's name and location	Name of the public event Location Date	Administrative charges	Penalty	Final domestic decision Court Name Date	Other complaints under well-established case-law	Amount awarded for pecuniary and non-pecuniary damage and costs and expenses per applicant (in euros)[1]
				05/05/2018					
23.	59662/18 08/12/2018	**Pavel Vladimirovich NIKITIN** 1991	Terekhov Konstantin Ilyich Moscow	Opposition manifestation Vladimir 05/05/2018	Article 20.2 § 5 of CAO and Article 19.3 § 1 of CAO	fine of RUB 5,000 and 1 day of administrative arrest	Vladimir Regional Court 06/09/2018 and Vladimir Regional Court 09/06/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in both sets of the administrative-offence proceedings. Final decisions: Vladimir Regional Court on 06/09/2018 and 09/06/2018	3,500
24.	1025/19 14/12/2018	**Nikolay Aleksandrovich SKVORTSOV** 1990	Glukhov Aleksey Vladimirovich Novocheboksarsk	Opposition manifestation Cheboksary 05/05/2018	Article 20.2 § 5 of CAO	fine of RUB 10,000	Supreme Court of the Chuvashia Republic 17/07/2018	Art. 6 (1) - lack of impartiality of the tribunal in view of the absence of a prosecuting party in administrative-offence proceedings. Supreme Court of the Chuvashia Republic on 17/07/2018	3,500

[1] Plus any tax that may be chargeable to the applicants.